

Motion to Compel Further Response(s)

Timeliness of the Motion

On March 28, 2025, Plaintiff served Defendant with Requests for Production (Set One), which had a total of 107 document requests. Defendant served Plaintiff with its responses to Requests for Production (Set One) on June 24, 2025. Defendant's counsel's declaration declares that on September 24, 2025, Plaintiff initiated meet-and-confer efforts regarding Defendant's discovery responses and Defendant served supplemental responses on February 6, 2026, but did not supplement Request for Production Nos. 41, 48, 69, 70, 75 or 80.

CCP section 2031.310(b)(3)(c) provides that "[u]nless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand." (CCP §2031.310(b)(3)(c).) Therefore, without the written agreement of the parties the last day to file this motion was March 23, 2026.

However, on March 16, 2026, the parties did agree to a mutual deadline to bring a Motion to Compel by April 3, 2026, which agreement is verified by attached Exhibit 1 a copy of the correspondence. This motion was not filed until April 21, 2026. Accordingly, the motion is untimely.

An untimely motion to compel further production of documents is jurisdictional in the sense that it renders the court without authority to rule on the motion to compel. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th1403.) Accordingly, the court must deny the motion as untimely as it does not have the authority to rule on the merits of the motion.

Sanctions

Code of Civil Procedure section 2030.300(d) provides that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Defendant requests sanctions against Plaintiff in the amount of \$4,329.50. Had Plaintiff properly met and conferred they likely would have realized the instant motion was futile because of the untimeliness. Sanctions are granted in the reduced, but reasonable amount of \$1,829.50 payable to Defendant by Plaintiff and Plaintiff's counsel jointly and severally within 30 days of this order becoming final.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503770	CANCHOLA VS CANCHOLA	MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION BY SANTIAGO CANCHOLA

Tentative Ruling: Granted.

Moving party to provide notice pursuant to CCP 1019.5.

This is a partition action filed May 20, 2025 by Plaintiff Santiago Canchola against Defendants Carlos Canchola and all persons claiming an interest in the property. The Complaint alleged three causes of action for 1) partition, 2) accounting, and 3) declaratory relief. The court subsequently

granted Plaintiff leave to file an amended complaint. On November 13, 2025, Plaintiff filed his First Amended Complaint alleging 2 cause of action for partition and causes of action for accounting and declaratory relief.

On January 20, 2026, Plaintiff moved the court for an order for appraisal under CCP section 874.311, et seq. On April 27, 2026, the court denied the motion.

Now Plaintiff moves the court for an interlocutory judgment of partition, pursuant to CCP section 872.720(a) and *Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 143. Santiago asserts that there is no credible dispute that he is the holder of a 50% interest in the property and that his absolute right to partition has not been waived. Therefore, Santiago asserts that entry of an interlocutory judgment is mandatory.

Defendant Carlos' response to the motion is that he does not oppose entry of an interlocutory judgment that determines the parties hold equal, undivided 50% interests as tenants in common and that Plaintiff has a right to partition as those points are not in dispute. Carlos states that he only opposes the implied relief sought that the interlocutory judgment should order, presuppose, or prejudge partition by sale. Carlos further asserts that the motion only establishes the right to partition, not the manner of partition, which must either be in kind or the manner of partition reserved for the PRPA process.

In reply, Santiago asserts that it is undisputed that the Partition of Real Property Act applies and has rigid rules which provide that if the cotenants do not agree on the value or mechanism to be used, the court must determine the fair market value based upon an appraisal. After which appraisal the court then determines whether to complete partition by sale or in kind based upon the requests of the parties.

Requests for Judicial Notice (RJN)

Plaintiff Santiago requests that the court take judicial notice of the following:

1. Grand Deed, recorded in the Official Records of Riverside County Recorder's Office □ Document No. 1992-0122343. A copy of the document is attached hereto and incorporated by reference as Exhibit "1." GRANTED

Evidentiary Objection(s)

Plaintiff filed objections to the declaration of counsel in support of the response. SUSTAINED

Partition Action

A partition action is an equitable proceeding governed by statute. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596.) The purpose of a partition is "to sever the unity of possession" and divide the parties' respective interests and proceeds. (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) The statutory scheme establishes a mandatory, two-step process: first, a trial to determine the parties' interests and the right to partition, memorialized in an interlocutory judgment; second, the implementation of that judgment through the physical division or sale of the property. (See *Summers v. Superior Court* (2018) 24 Cal.App.5th 138, 142; *LEG Investments v. Boxler*, supra, 183 Cal.App.4th 484; *Grant v. Murphy* (1897) 116 Cal. 427.)

The first stage requires the court to adjudicate the parties' interests and the right to partition. The interests of all parties "may be put in issue, tried, and determined in the action." (CCP §872.610.)

Critically, “[a]t the trial, the court shall determine whether the plaintiff has the right to partition.” (CCP §872.710 (a).)

If a plaintiff has the right to partition, then the court “shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (CCP §872.720(a).) This interlocutory judgment is an appealable determination of the parties’ respective rights and the method of partition. (*Grant v. Murphy*, supra, 116 Cal. at 431-32.) The entry of this judgment is a mandatory prerequisite before the court can proceed to the second stage of ordering a sale or division. (*Summers v. Superior Court*, supra, 24 Cal.App.5th at 143 [holding that a court may not order the manner of partition before it determines the ownership interests].)

The Partition of Real Property Act (the “Act”) supplements the existing partition statutes. (CCP §874.311 et seq.) The Act applies to partition actions filed on or after January 1, 2023, involving tenancy-in-common property where no binding partition agreement exists. (CCP §§874.311(b), (c).) Therefore, the PRPA governs this action as it was filed after January 1, 2023, the parties are tenants in common, and no binding partition agreement exists. (CCP §874.311.)

The Act supplements, but does not override, the mandatory two-step procedural requirements of a partition action, including the necessity of an interlocutory judgment. (CCP §874.313 [stating the Act supplements Title 10.5 and controls only over inconsistent provisions].) Therefore, the first step of entry of an interlocutory judgment is still required before any form of partition can be ordered.

Here, the evidence and the parties are in agreement that they each own 50% of the property as co tenants. Accordingly, the court grants the motion and enters an interlocutory judgment determining that Plaintiff and Defendant both own 50% of the property as co-tenants and entitled to partition, the manner of which is not before the court in the instant motion.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507350	D'SOL VS SELECT PORTFOLIO SERVICING, INC.	MOTION FOR ORDER TO DEEM MATTERS ADMITTED SET NO. ONE, PROPOUNDED TO DEFENDANT SELECT PORTFOLIO SERVICING, INC. (122 REQUESTS) AND DEFENDANT WILMINGTON SAVINGS FUND SOCIETY, FSB (120 REQUESTS). BY LUNA D'SOL

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

Plaintiff, a homeowner, has brought this action for wrongful foreclosure of her residential property against the foreclosing beneficiary and its servicer, and the trustee under the deed of trust. Plaintiff is pro per. The crux of Plaintiff’s Complaint is that, despite wiring of funds sufficient to cure her default on her mortgage payment and fully reinstate her loan, Defendants nevertheless completed a foreclosure sale of her property and caused a trustee’s deed upon sale to be recorded. As a result of Defendants’ alleged misconduct, Plaintiff alleges that the wrongfully recorded trustee’s deed upon sale clouded title of her property and that she sustained damages in the form of loss of her home, adverse credit rating, and emotional distress.